

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Bryan Geoulla, \$300 for Michael Josephson, and \$150 per hour by Mark Chivorchian are reasonable for similar legal services within Placer County. There is insufficient evidence that plaintiff needed to hire out-of-town counsel or that out-of-town counsel rates are proper. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609–10.) The court declines to issue a multiplier.

Defendant also challenges \$180.35 in costs for the “other” category. “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, “if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the requested costs in the amount of \$180.35 for the “other” category is unsupported by evidence and thus not reasonably necessary to the litigation.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$8,650 for attorney’s fees and costs in the amount of \$550.85 for a total amount of \$9,200.85.

9. S-CV-0056271 PLEKHANOVA, ADELINA v. FOUR SEASONS ESTATES

Defendant Granlibakken Management Company, Ltd.’s Demurrer to Plaintiff’s Complaint

Defendant demurs to the second, third, fourth, and fifth cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action for public nuisance, third cause of action for breach of contract, fourth cause of action for intentional infliction of emotional distress, and fifth cause of action for fraudulent concealment. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123

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Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Second Cause of Action—Public Nuisance

A “public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a public nuisance cause of action because there are insufficient factual allegations that the alleged nuisance affects an entire community or neighborhood or any considerable number of persons. Accordingly, the demurrer is sustained with leave to amend as to the second cause of action.

Third Cause of Action—Breach of Contract

A breach of contract claim has the following essential elements: (1) contract, (2) plaintiff’s performance, (3) defendant’s breach, (4) damages. (*San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.) The formation of a contract, the first element for breach of a contract, requires “(1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) a sufficient cause of consideration.” (Civ. Code § 1550, subds. (1)–(4).) A contract is properly pleaded “either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect.” (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.) Plaintiff may establish the legal effect of a contract by alleging “the substance of its relevant terms . . . [which] requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a breach of contract cause of action because there are insufficient factual allegations that a contract is properly pleaded. Accordingly, the demurrer is sustained with leave to amend as to the third cause of action.

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Fourth Cause of Action—Intentional Infliction of Emotional Distress

Plaintiffs must establish the following elements for an intentional infliction of emotional distress cause of action: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) Conduct is outrageous “when it is so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Id.* at p. 1050–51.) As such, liability “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Id.* at p. 1051.) A cause of action for intentional infliction of emotional distress must plead with “great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community” to avoid a demurrer. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160–61.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state an intentional infliction of emotional distress cause of action because there are insufficient factual allegations that defendant engaged in extreme and outrageous conduct with the intent of causing, or reckless disregard of causing, emotional distress. Accordingly, the demurrer is sustained with leave to amend as to the fourth cause of action.

Fifth Cause of Action—Fraudulent Concealment

A fraudulent concealment cause of action requires plaintiffs to establish “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a fraudulent concealment cause of action because there are insufficient factual allegations that defendant had a duty to disclose the alleged presence of bed bugs. Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

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In sum, the demurrer is sustained with leave to amend as to the second, third, fourth, and fifth causes of action. Plaintiffs shall file and serve an amended complaint on or before October 5, 2026.

Defendant Granlibakken Management Company, Ltd.'s Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is denied as moot in light of the court's ruling sustaining the demurrer with leave to amend.

10. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to compel initial special interrogatories, motion to compel initial requests for production of documents, and motion to deem requests for admissions admitted are continued to **November 12, 2026, at 8:30 a.m. in Department 3.**

11. S-CV-0057471 916 FLOORS v. TESLA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Defendant's request for judicial notice is granted.

Ruling on Motion

Defendant moves to compel plaintiffs to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)